

CLASSDOJO INTERNATIONAL DATA PROCESSING ADDENDUM

(Revision August 2020)

This International Data Processing Addendum, including its Schedules and Appendices, (“**Int. DPA**”) forms part of the Service Agreement or other written or electronic agreement between ClassDojo, Inc. and LEA for the online services from ClassDojo, as well as the Student Data Protection Addendum (“**Student DPA**”), which includes the services listed on Appendix 3 to the Standard Contractual Clauses of this Int. DPA (identified either as “**Services**” or otherwise in the applicable agreement, and hereinafter defined as “**Services**”) (collectively, the “**Agreement**”) to reflect the parties’ agreement with regard to the Processing of Personal Data.

By signing the Agreement, LEA enters into this Int. DPA on behalf of itself and, to the extent required under applicable Data Protection Laws and Regulations, in the name and on behalf of its Authorized Affiliates, if and to the extent ClassDojo processes Personal Data for which such Authorized Affiliates qualify as the Controller. For the purposes of this Int. DPA only, and except where indicated otherwise, the term “LEA” shall include LEA and Authorized Affiliates. All capitalized terms not defined herein shall have the meaning set forth in the Agreement.

In the course of providing the Services to LEA pursuant to the Agreement, ClassDojo may Process Personal Data on behalf of LEA and the Parties agree to comply with the following provisions with respect to any Personal Data.

HOW TO EXECUTE THIS EU DPA:

1. This Int. DPA consists of two parts: the main body of the Int. DPA, and Schedules 1, 2, and 3 (including Appendices 1 to 3).
2. This Int. DPA has been pre-signed on behalf of ClassDojo. The Standard Contractual Clauses in Schedule 3 have been pre-signed by ClassDojo, Inc. as the data importer.
3. To complete this Int. DPA, LEA must:
 - a. Complete the information in the signature box and sign on Page 5.
 - b. Send the signed DPA to ClassDojo by email to intdpa@classdojo.com indicating, if applicable, the LEA’s Account Number.

Upon receipt of the validly completed Int. DPA by ClassDojo as indicated above, this Int. DPA will become legally binding.

For the avoidance of doubt, signature of the Int. DPA on page 5 shall be deemed to constitute signature and acceptance of the Standard Contractual Clauses incorporated herein, including their Appendices. Where LEA wishes to separately execute the Standard Contractual Clauses and its Appendices, LEA should also complete the information as the data exporter on Page 8 and complete the information in the signature box and sign on Pages 12, 13, and 14.

HOW THIS DPA APPLIES

If the LEA entity signing this Int. DPA is a party to the Agreement, this Int. DPA is an addendum to and forms part of the Agreement. This Int. DPA shall not replace any comparable or additional rights relating to Processing of LEA Data contained in LEA’s Agreement (including any existing data processing addendum to the Agreement (e.g. the Student DPA)).

DATA PROCESSING TERMS

1. DEFINITIONS

“**Affiliate**” means any entity that directly or indirectly controls, is controlled by, or is under common control with the subject entity. “Control,” for purposes of this definition, means direct or indirect ownership or control of more than 50% of the voting interests of the subject entity.

“**Authorized Affiliate**” means any of LEA’s Affiliate(s) which (a) is subject to the data protection laws and regulations of the European Union, the European Economic Area and/or their member states, Switzerland and/or the United Kingdom, and (b) is permitted to use the Services pursuant to the Agreement between LEA and ClassDojo, but has not signed its own Terms of Service or Agreement with ClassDojo and is not a “LEA” as defined under this DPA.

“**CCPA**” means the California Consumer Privacy Act, Cal. Civ. Code § 1798.100 *et seq.*, and its implementing regulations.

“**Controller**” means the entity which determines the purposes and means of the Processing of Personal Data.

“**LEA**” means the entity that executed the Agreement together with its Affiliates (for so long as they remain Affiliates) which have signed the DPA and Service Agreement.

“LEA Data” means what is defined in the Agreement as “LEA Data”, “Student Data”, “User Content”, or “Your Data, provided that such data is electronic data and information submitted by or for LEA (or collected by ClassDojo and Processed on behalf of LEA) to the Services.

“Data Protection Laws and Regulations” means all laws and regulations, including laws and regulations of the European Union, the European Economic Area and their member states, Switzerland, the United Kingdom and the United States and its states, applicable to the Processing of Personal Data under the Agreement.

“Data Subject” means the identified or identifiable person to whom Personal Data relates.

“Data Subject Rights” means all rights granted to Data Subjects by Data Protection Laws and Regulations, including the right to information, access, rectification, erasure, restrictions, portability, objection, and not to be subject to automated decision-making.

“GDPR” means the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

“Personal Data” means any information relating to (i) an identified or identifiable natural person and, (ii) an identified or identifiable legal entity (where such information is protected similarly as personal data or personally identifiable information under applicable Data Protection Laws and Regulations), where for each (i) or (ii), such data is LEA Data.

“Personnel” means any natural person acting under the authority of ClassDojo.

“Processing” means any operation or set of operations which is performed upon Personal Data, whether or not by automatic means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

“Processor” means the entity which Processes Personal Data on behalf of the Controller, including as applicable any “service provider” as that term is defined by the CCPA.

“Security and Privacy Documentation” means the Security and Privacy Documentation applicable to the Services, as updated from time to time, and accessible via ClassDojo’s webpage at <https://www.classdojo.com/security/> or as otherwise made reasonably available by ClassDojo.

“ClassDojo” means the ClassDojo entity which is a party to this Int. DPA, as specified in the section “HOW THIS DPA APPLIES” above, being ClassDojo, Inc., a company incorporated in Delaware, United States

“ClassDojo Group” means ClassDojo and its Affiliates engaged in the Processing of Personal Data.

“Standard Contractual Clauses” means the agreement executed by and between LEA and ClassDojo and attached hereto as Schedule 3 pursuant to the European Commission’s decision (C(2010)593) of 5 February 2010 on Standard Contractual Clauses for the transfer of personal data to processors established in third countries which do not ensure an adequate level of data protection.

“Sub-processor” means any Processor engaged by ClassDojo or a member of the ClassDojo Group.

“Supervisory Authority” means an independent public authority which is established by an EU Member State pursuant to the GDPR.

2. PROCESSING OF PERSONAL DATA

2.1 Roles of the Parties. The parties acknowledge and agree that with regard to the Processing of Personal Data, LEA is the Controller, ClassDojo is the Processor and that ClassDojo or members of the ClassDojo Group will engage Sub-processors pursuant to the requirements set forth in Section 5 “Sub-processors” below.

2.2 LEA’s Processing of Personal Data. LEA shall, in its use of the Services, Process Personal Data in accordance with the requirements of Data Protection Laws and Regulations, including any applicable requirement to provide notice to Data Subjects of the use of ClassDojo as Processor. For the avoidance of doubt, LEA’s instructions for the Processing of Personal Data shall comply with Data Protection Laws and Regulations. LEA shall have sole responsibility for the accuracy, quality, and legality of Personal Data and the means by which LEA acquired (or instructed ClassDojo to acquire on its behalf) Personal Data. LEA specifically acknowledges that its use of the Services will not violate the rights of any Data Subject that has opted-out from sales or other disclosures of Personal Data, to the extent applicable under the CCPA or other Data Protection Laws and Regulations.

2.3 ClassDojo’s Processing of Personal Data. ClassDojo shall Process Personal Data on behalf of and only in accordance with LEA’s documented instructions for the following purposes: (i) Processing in accordance with the Agreement; (ii) Processing initiated by Users in their use of the Services; and (iii) Processing to comply with other documented reasonable instructions provided by LEA (e.g., via email) where such instructions are consistent with the terms of the Agreement and issued by LEA’s management board, data protection officers or the manager of the LEA’s legal department, as applicable.

- 2.4 Details of the Processing.** The subject-matter of Processing of Personal Data by ClassDojo is the performance of the Services pursuant to the Agreement. The duration of the Processing, the nature and purpose of the Processing, the types of Personal Data and categories of Data Subjects Processed under this Int. DPA are further specified in Schedule 2 (Details of the Processing) to this Int. DPA.
- 3. ASSISTANCE**
- 3.1** ClassDojo must provide reasonable assistance to LEA with the fulfilment of LEA’s own obligations under Data Protection Laws and Regulations with respect to: 1) complying with Data Subjects’ requests to exercise Data Subject Rights, 2) replying to inquiries or complaints from Data Subjects, 3) replying to investigations and inquiries from Supervisory Authorities, 4) notifying LEA of LEA Data Incident (as defined below) relating to LEA’s Student Data, and 5) prior consultations with Supervisory Authorities. ClassDojo will follow the procedures set forth in Section 2.3 (“**Parent Access**”) of the Student DPA.
- 3.2** Upon reasonable request, ClassDojo must provide LEA with all information necessary to enable LEA to satisfy notification obligations, maintaining records of Processing activities, or performing a data protection impact assessment.
- 3.3** ClassDojo must promptly inform LEA if ClassDojo believes that an instruction of LEA violates Data Protection Laws and Regulations.
- 3.4** Unless prohibited by EU or EU member state law, and subject to the procedures set forth in Section 2.5 of the Student DPA (“**Third-Party Request**”), ClassDojo must promptly inform LEA if ClassDojo receives a request to disclose Personal Data from law enforcement, courts or any government entity; is subject to a legal obligation that requires ClassDojo to Process Personal Data in contravention of LEA’s instructions; or is otherwise unable to comply with Data Protection Laws and Regulations or this Int. DPA. If ClassDojo is prevented from notifying LEA as required under this Int. DPA, ClassDojo must consult and comply with the instructions of the competent Supervisory Authority.
- 4. ClassDojo PERSONNEL**
- 4.1 Training and Access.** ClassDojo must implement appropriate technical and organizational measures to ensure that Personnel do not Process Personal Data except on the instructions of the LEA and will follow additional obligations at set forth in Section 4.3 of the Student DPA (“**Employee Obligations**”), Section 5.1(a) of the Student DPA (“**Passwords and Employee Access**”), and Section 5.1 (d) of the Student DPA (“**Employee Training**”).
- 4.2 Confidentiality.** ClassDojo must keep all LEA Data and any information relating to the Processing thereof, in strict confidence as set forth in Section 4.4 of the Student DPA (“**No Disclosure**”).
- 5. SUB-PROCESSORS**
- 5.1 Appointment of Sub-processors.** LEA acknowledges and agrees that (a) ClassDojo Affiliates may be retained as Sub-processors; and (b) ClassDojo and ClassDojo’s Affiliates respectively may engage third-party Sub-processors in connection with the provision of the Services. LEA hereby authorizes ClassDojo to engage the Sub-processors listed as a link from ClassDojo’s Privacy Policy (which may be updated from time to time). ClassDojo or a ClassDojo Affiliate has entered into a written agreement with each Sub-processor containing data protection obligations not less protective than those in the Agreement with respect to the protection of LEA Data to the extent applicable to the nature of the Services provided by such Sub-processor. Provider must obtain sufficient guarantees from all Sub-processors that they will implement appropriate technical and organizational measures in such a manner that the Processing will meet the requirements of Data Protection Laws and Regulations and this Int. DPA.
- 5.2 List of Current Sub-processors and Notification of New Sub-processors.** ClassDojo shall make available to LEA the current list of Sub-processors for the Services identified in Appendix 3 of the Standard Contractual Clauses attached hereto. Such Sub-processor lists shall include the identities of those Sub-processors and their country of location (“**Sub-processor Documentation**”). LEA may also find the Sub-Processor Documentation within ClassDojo’s website in its Privacy Policy under “Service Providers” or linked directly here: <https://www.classdojo.com/third-party-service-providers/>. LEA may send an email to subprocessornotification@classdojo.com to subscribe to receive notification of a new Sub-processor. If LEA subscribes, ClassDojo will provide notification of a new Sub-processor(s) before authorizing any new Sub-processor(s) to Process Personal Data in connection with the provision of the applicable Services.
- 5.3 Objection Right for New Sub-processors.** LEA may object to ClassDojo’s use of a new Sub-processor by notifying ClassDojo promptly in writing within thirty (30) days after receipt of ClassDojo’s notice in accordance with the mechanism set out in Section 5.2. In the event LEA objects to a new Sub-processor, as permitted in the preceding sentence, ClassDojo will use reasonable efforts to make available to LEA a change in the Services or recommend a commercially reasonable change to LEA’s configuration or use of the Services to avoid Processing of Personal Data by the objected-to new Sub-processor without unreasonably burdening LEA. If ClassDojo is unable to make available such change within a reasonable period of time, which shall not exceed thirty (30) days, LEA may terminate the Agreement with respect to only to those

Services which cannot be provided by ClassDojo without the use of the objected-to new Sub-processor by providing written notice to ClassDojo. ClassDojo will refund LEA any prepaid fees (if applicable) covering the remainder of the term of such Agreement following the effective date of termination with respect to such terminated Services, without imposing a penalty for such termination on LEA.

- 5.4 Liability.** ClassDojo shall be liable for the acts and omissions of its Sub-processors to the same extent ClassDojo would be liable if performing the services of each Sub-processor directly under the terms of this EU DPA, except as otherwise set forth in the Agreement.

6. SECURITY

- 6.1 Controls for the Protection of LEA Data.** ClassDojo shall maintain appropriate technical and organizational measures for protection of the security appropriate to the risk presented by the Processing (including protection against unauthorized or unlawful Processing and against accidental or unlawful destruction, loss or alteration or damage, unauthorized disclosure of, or access to, LEA Data), confidentiality and integrity of LEA Data, as set forth in Section 5 of the Student DPA (“Data Security”) as well as the Security and Privacy Documentation. ClassDojo regularly monitors compliance with these measures. ClassDojo will not materially decrease the overall security of the Services during a subscription term.

7. LEA DATA INCIDENT MANAGEMENT AND NOTIFICATION

ClassDojo shall notify LEA without undue delay after becoming aware of the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to LEA Data, including Personal Data, transmitted, stored or otherwise Processed by ClassDojo or its Sub-processors of which ClassDojo becomes aware (a “**LEA Data Incident**”). ClassDojo shall make reasonable efforts to identify the cause of such LEA Data Incident and take those steps as ClassDojo deems necessary and reasonable in order to remediate the cause of such a LEA Data Incident to the extent the remediation is within ClassDojo’s reasonable control. The obligations herein shall not apply to incidents that are caused by LEA or LEA’s Users.

8. RETURN AND DELETION OF LEA DATA

ClassDojo shall return LEA Data to LEA and, to the extent allowed by applicable law, delete LEA Data in accordance with the procedures and timeframes specified in Section 4.6 (“**Disposition of Data**”) of the Student DPA.

9. AUTHORIZED AFFILIATES

- 9.1 Contractual Relationship.** The parties acknowledge and agree that, by executing the Agreement, LEA enters into the DPA on behalf of itself and, as applicable, in the name and on behalf of its Authorized Affiliates, thereby establishing a separate DPA between ClassDojo and each such Authorized Affiliate subject to the provisions of the Agreement and this Section 9 and Section 10. Each Authorized Affiliate agrees to be bound by the obligations under this DPA and, to the extent applicable, the Agreement. For the avoidance of doubt, an Authorized Affiliate is not and does not become a party to the Agreement and is only a party to the DPA. All access to and use of the Services and Content by Authorized Affiliates must comply with the terms and conditions of the Agreement and any violation of the terms and conditions of the Agreement by an Authorized Affiliate shall be deemed a violation by LEA.
- 9.2 Communication.** The LEA that is the contracting party to the Agreement shall remain responsible for coordinating all communication with ClassDojo under this DPA and be entitled to make and receive any communication in relation to this DPA on behalf of its Authorized Affiliates.
- 9.3 Rights of Authorized Affiliates.** Where an Authorized Affiliate becomes a party to the DPA with ClassDojo, it shall to the extent required under applicable Data Protection Laws and Regulations be entitled to exercise the rights and seek remedies under this DPA, subject to the following:
- 9.3.1** Except where applicable Data Protection Laws and Regulations require the Authorized Affiliate to exercise a right or seek any remedy under this DPA against ClassDojo directly by itself, the parties agree that (i) solely the LEA that is the contracting party to the Agreement shall exercise any such right or seek any such remedy on behalf of the Authorized Affiliate, and (ii) the LEA that is the contracting party to the Agreement shall exercise any such rights under this DPA not separately for each Authorized Affiliate individually but in a combined manner for itself and all of its Authorized Affiliates together (as set forth, for example, in Section 9.3.2, below).
- 9.3.2** The parties agree that the LEA that is the contracting party to the Agreement shall, when carrying out an on-site audit of the procedures relevant to the protection of Personal Data, take all reasonable measures to limit any impact on ClassDojo and its Sub-Processors by combining, to the extent reasonably possible, several audit requests carried out on behalf of itself and all of its Authorized Affiliates in one single audit.

10. LIMITATION OF LIABILITY

Each party's and all of its Affiliates' liability, taken together in the aggregate, arising out of or related to this EU DPA, and all EU DPAs between Authorized Affiliates and ClassDojo, whether in contract, tort or under any other theory of liability, is subject to the 'Limitation of Liability' section of the Agreement, and any reference in such section to the liability of a party means the aggregate liability of that party and all of its Affiliates under the Agreement and all DPAs together.

For the avoidance of doubt, ClassDojo's and its Affiliates' total liability for all claims from LEA and all of its Authorized Affiliates arising out of or related to the Agreement and all EU DPAs shall apply in the aggregate for all claims under both the Agreement and all EU DPAs established under the Agreement, including by LEA and all Authorized Affiliates, and, in particular, shall not be understood to apply individually and severally to LEA and/or to any Authorized Affiliate that is a contractual party to any such DPA.

11. EUROPEAN SPECIFIC PROVISIONS

11.1 GDPR. ClassDojo will Process Personal Data in accordance with the GDPR requirements directly applicable to SFDC's provision of its Services.

11.2 Transfer mechanisms for data transfers. Subject to the additional terms in Schedule 1, ClassDojo makes available the transfer mechanisms listed below which shall apply, in the order of precedence as set out in Section 11.3, to any transfers of Personal Data under this DPA from the European Union, the European Economic Area and/or their member states, Switzerland and the United Kingdom to countries which do not ensure an adequate level of data protection within the meaning of Data Protection Laws and Regulations of the foregoing territories, to the extent such transfers are subject to such Data Protection Laws and Regulations:

1. The Standard Contractual Clauses set forth in Schedule 3 to this Int. DPA apply to the Services listed in Appendix 3 to the Standard Contractual Clauses (the "SCC Services"), subject to the additional terms in Section 3 of Schedule 1; and
2. Where applicable, pursuant to GDPR Art. 49 derogations for the transfer of personal data, such as consent or performance of a contract.

11.3 Order of precedence. In the event that Services are covered by more than one transfer mechanism, the transfer of Personal Data will be subject to a single transfer mechanism in accordance with the following order of precedence: (1) (1) Art. 49 derogations (e.g. consent), and (2) the Standard Contractual Clauses.

12. LEGAL EFFECT

This DPA shall only become legally binding between LEA and ClassDojo when the formalities steps set out in the Section "HOW TO EXECUTE THIS DPA" above have been fully completed.

List of Schedules

Schedule 1: Transfer Mechanisms for European Data Transfers

Schedule 2: Details of the Processing

Schedule 3: Standard Contractual Clauses

The parties' authorized signatories have duly executed this DPA:

Signature: _____

LEA Legal Name: _____

Print Name: _____

Title: _____

Date: _____

SCHEDULE 1 - TRANSFER MECHANISMS FOR EUROPEAN DATA TRANSFERS

1. ADDITIONAL TERMS FOR SCC SERVICES

- 1.1. **LEAs covered by the Standard Contractual Clauses.** The Standard Contractual Clauses and the additional terms specified in this Section 2 apply to (i) LEA which is subject to the data protection laws and regulations of the European Union, the European Economic Area and/or their member states, Switzerland and/or the United Kingdom and, (ii) its Authorized Affiliates. For the purpose of the Standard Contractual Clauses and this Section 2, the aforementioned entities shall be deemed “data exporters”.
- 1.2. **Instructions.** This DPA and the Agreement are LEA’s complete and final documented instructions at the time of signature of the Agreement to ClassDojo for the Processing of Personal Data. Any additional or alternate instructions must be agreed upon separately. For the purposes of Clause 5(a) of the Standard Contractual Clauses, the following is deemed an instruction by the LEA to process Personal Data: (a) Processing in accordance with the Agreement; (b) Processing initiated by Users in their use of the SCC Services and (c) Processing to comply with other reasonable documented instructions provided by LEA (e.g., via email) where such instructions are consistent with the terms of the Agreement.
- 1.3. **Appointment of new Sub-processors and List of current Sub-processors.** Pursuant to Clause 5(h) of the Standard Contractual Clauses, LEA acknowledges and expressly agrees that (a) ClassDojo and ClassDojo’s Affiliates respectively may engage third-party Sub-processors in connection with the provision of the SCC Services. ClassDojo shall make available to LEA the current list of Sub-processors in accordance with Section 5.2 of this Int. DPA
- 1.4. **Notification of New Sub-processors and Objection Right for new Sub-processors.** Pursuant to Clause 5(h) of the Standard Contractual Clauses, LEA acknowledges and expressly agrees that ClassDojo may engage new Sub-processors as described in Sections 5.2 and 5.3 of the Int. DPA.
- 1.5. **Copies of Sub-processor Agreements.** The parties agree that the copies of the Sub-processor agreements that must be provided by ClassDojo to LEA pursuant to Clause 5(j) of the Standard Contractual Clauses may have all commercial information, or clauses unrelated to the Standard Contractual Clauses or their equivalent, removed by ClassDojo beforehand; and, that such copies will be provided by ClassDojo, in a manner to be determined in its discretion, only upon request by LEA.
- 1.6. **Audits and Certifications.** The parties agree that the audits described in Clause 5(f) and Clause 12(2) of the Standard Contractual Clauses shall be carried out in accordance with the following specifications:

Upon LEA’s request, and subject to any appropriate confidentiality agreements being executed, ClassDojo shall make available to LEA that is not a competitor of ClassDojo (or LEA’s independent, third-party auditor that is not a competitor of ClassDojo) information regarding ClassDojo’s compliance with the obligations set forth in this DPA in the form of the third-party certifications and audits set forth in the Security, Privacy and Architecture Documentation to the extent ClassDojo makes them generally available to its LEAs. LEA may contact ClassDojo in accordance with the “Notices” Section of the Agreement to request an on-site audit of the procedures relevant to the protection of Personal Data. LEA shall reimburse ClassDojo for any time expended for any such on-site audit. Before the commencement of any such on-site audit, LEA and ClassDojo shall mutually agree upon the scope, timing, and duration of the audit in addition to the reimbursement rate for which LEA shall be responsible. All reimbursement rates shall be reasonable, taking into account the resources expended by ClassDojo. LEA shall promptly notify ClassDojo with information regarding any non-compliance discovered during the course of an audit.
- 1.7. **Certification of Deletion.** The parties agree that the certification of deletion of Personal Data that is described in Clause 12(1) of the Standard Contractual Clauses shall be provided by ClassDojo to LEA only upon LEA’s request.
- 1.8. **Conflict.** In the event of any conflict or inconsistency between the body of this DPA and any of its Schedules (not including the Standard Contractual Clauses) and the Standard Contractual Clauses in Schedule 3, the Standard Contractual Clauses shall prevail.

SCHEDULE 2 - DETAILS OF THE PROCESSING

Nature and Purpose of Processing

ClassDojo will Process Personal Data as necessary to perform the SCC Services pursuant to the Agreement, and as further instructed by LEA in its use of the SCC Services.

Duration of Processing

Subject to Section 8 of the Int. DPA, ClassDojo will Process Personal Data for the duration of the Agreement, unless otherwise agreed upon in writing.

Categories of Data Subjects

LEA may submit Personal Data to the SCC Services (or ClassDojo may collect and Process on behalf of LEA), the extent of which is determined and controlled by LEA in its sole discretion, and which may include, but is not limited to Personal Data relating to the following categories of data subjects:

- Employees, agents, advisors, freelancers of LEA (who are natural persons)
- LEA's Users authorized by LEA to use the Services (who are natural persons)

Type of Personal Data

LEA may submit Personal Data to the SCC Services (or ClassDojo may collect and Process on behalf of the LEA), the extent of which is determined and controlled by LEA in its sole discretion, and which may include, but is not limited to the following categories of Personal Data:

[See Schedule of Data attached to the Student Data DPA]

Special categories of data (if appropriate)

LEA shall not provide any special categories of Personal Data to the SCC Services and which is for the sake of clarity Personal Data with information revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade-union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation.

SCHEDULE 3 - STANDARD CONTRACTUAL CLAUSES

Standard Contractual Clauses (processors)

For the purposes of Article 26(2) of Directive 95/46/EC for the transfer of personal data to processors established in third countries which do not ensure an adequate level of data protection.

Name of the data exporting organisation: _____

Address: _____

Tel.: _____ fax: _____ e-mail: _____

Other information needed to identify the organisation: _____

.....
(the data **exporter**)

And

Name of the data importing organisation: **ClassDojo, Inc.**

Address: **735 Tehama Street, San Francisco, CA 94103, USA**

e-mail: privacy@classdojo.com

Other information needed to identify the organisation: Not applicable

(the data **importer**)

each a “party”; together “the parties”,

HAVE AGREED on the following Contractual Clauses (the Clauses) in order to adduce adequate safeguards with respect to the protection of privacy and fundamental rights and freedoms of individuals for the transfer by the data exporter to the data importer of the personal data specified in Appendix 1.

Clause 1

Definitions

For the purposes of the Clauses: ‘personal data’, ‘special categories of data’, ‘process/processing’, ‘controller’, ‘processor’, ‘data subject’ and ‘supervisory authority’ shall have the same meaning as in Directive 95/46/EC of the European Parliament and of the Council of 24 October 1995 on the protection of individuals with regard to the processing of personal data and on the free movement of such data;

- (a) ‘*the data exporter*’ means the controller who transfers the personal data;
- (b) ‘*the data importer*’ means the processor who agrees to receive from the data exporter personal data intended for processing on his behalf after the transfer in accordance with his instructions and the terms of the Clauses and who is not subject to a third country’s system ensuring adequate protection within the meaning of Article 25(1) of Directive 95/46/EC;
- (c) ‘*the subprocessor*’ means any processor engaged by the data importer or by any other subprocessor of the data importer who agrees to receive from the data importer or from any other subprocessor of the data importer personal data exclusively intended for processing activities to be carried out on behalf of the data exporter after the transfer in accordance with his instructions, the terms of the Clauses and the terms of the written subcontract;
- (d) ‘*the applicable data protection law*’ means the legislation protecting the fundamental rights and freedoms of individuals and, in particular, their right to privacy with respect to the processing of personal data applicable to a data controller in the Member State in which the data exporter is established;
- (e) ‘*technical and organisational security measures*’ means those measures aimed at protecting personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorised disclosure or access, in particular where the processing involves the transmission of data over a network, and against all other unlawful forms of processing.

Clause 2

Details of the transfer

The details of the transfer and in particular the special categories of personal data where applicable are specified in Appendix 1 which forms an integral part of the Clauses.

Clause 3

Third-party beneficiary clause

- 1. The data subject can enforce against the data exporter this Clause, Clause 4(b) to (i), Clause 5(a) to (e), and (g) to (j), Clause 6(1) and (2), Clause 7, Clause 8(2), and Clauses 9 to 12 as third-party beneficiary.
- 2. The data subject can enforce against the data importer this Clause, Clause 5(a) to (e) and (g), Clause 6, Clause 7, Clause 8(2), and Clauses 9 to 12, in cases where the data exporter has factually disappeared or has ceased to exist in law unless any successor entity has assumed the entire legal obligations of the data exporter by contract or by operation of law, as a result of which it takes on the rights and obligations of the data exporter, in which case the data subject can enforce them against such entity.
- 3. The data subject can enforce against the subprocessor this Clause, Clause 5(a) to (e) and (g), Clause 6, Clause 7, Clause 8(2), and Clauses 9 to 12, in cases where both the data exporter and the data importer have factually disappeared or ceased to exist in law or have become insolvent, unless any successor entity has assumed the entire legal obligations of the data exporter by contract or by operation of law as a result of which it takes on the rights and obligations of the data exporter, in which case the data subject can enforce them against such entity. Such third-party liability of the subprocessor shall be limited to its own processing operations under the Clauses.
- 4. The parties do not object to a data subject being represented by an association or other body if the data subject so expressly wishes and if permitted by national law.
- 5.

Clause 4

Obligations of the data exporter

The data importer agrees and warrants:

- (a) that the processing, including the transfer itself, of the personal data has been and will continue to be carried out in accordance with the relevant provisions of the applicable data protection law (and, where applicable, has been notified to the relevant authorities of the Member State where the data exporter is established) and does not violate the relevant provisions of that State;
- (b) that it has instructed and throughout the duration of the personal data processing services will instruct the data importer

to process the personal data transferred only on the data exporter's behalf and in accordance with the applicable data protection law and the Clauses;

- (c) that the data importer will provide sufficient guarantees in respect of the technical and organisational security measures specified in Appendix 2 to this contract;
- (d) that after assessment of the requirements of the applicable data protection law, the security measures are appropriate to protect personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorised disclosure or access, in particular where the processing involves the transmission of data over a network, and against all other unlawful forms of processing, and that these measures ensure a level of security appropriate to the risks presented by the processing and the nature of the data to be protected having regard to the state of the art and the cost of their implementation;
- (e) that it will ensure compliance with the security measures;
- (f) that, if the transfer involves special categories of data, the data subject has been informed or will be informed before, or as soon as possible after, the transfer that its data could be transmitted to a third country not providing adequate protection within the meaning of Directive 95/46/EC;
- (g) to forward any notification received from the data importer or any subprocessor pursuant to Clause 5(b) and Clause 8(3) to the data protection supervisory authority if the data exporter decides to continue the transfer or to lift the suspension;
- (h) to make available to the data subjects upon request a copy of the Clauses, with the exception of Appendix 2, and summary description of the security measures, as well as a copy of any contract for subprocessing services which has to be made in accordance with the Clauses, unless the Clauses or the contract contain commercial information, in which case it may remove such commercial information;
- (i) that, in the event of subprocessing, the processing activity is carried out in accordance with Clause 11 by a subprocessor providing at least the same level of protection for the personal data and the rights of data subject as the data importer under the Clauses; and
- (j) that it will ensure compliance with Clause 4(a) to (i).

Clause 5 ***Obligations of the data importer***

The data importer agrees and warrants:

- (a) to process the personal data only on behalf of the data exporter and in compliance with its instructions and the Clauses; if it cannot provide such compliance for whatever reasons, it agrees to inform promptly the data exporter of its inability to comply, in which case the data exporter is entitled to suspend the transfer of data and/or terminate the contract;
- (b) that it has no reason to believe that the legislation applicable to it prevents it from fulfilling the instructions received from the data exporter and its obligations under the contract and that in the event of a change in this legislation which is likely to have a substantial adverse effect on the warranties and obligations provided by the Clauses, it will promptly notify the change to the data exporter as soon as it is aware, in which case the data exporter is entitled to suspend the transfer of data and/or terminate the contract;
- (c) that it has implemented the technical and organisational security measures specified in Appendix 2 before processing the personal data transferred;
- (d) that it will promptly notify the data exporter about:
 - (i) any legally binding request for disclosure of the personal data by a law enforcement authority unless otherwise prohibited, such as a prohibition under criminal law to preserve the confidentiality of a law enforcement investigation,
 - (ii) any accidental or unauthorised access, and
 - (iii) any request received directly from the data subjects without responding to that request, unless it has been otherwise authorised to do so;
- (e) to deal promptly and properly with all inquiries from the data exporter relating to its processing of the personal data subject to the transfer and to abide by the advice of the supervisory authority with regard to the processing of the data transferred;
- (f) at the request of the data exporter to submit its data processing facilities for audit of the processing activities covered by the Clauses which shall be carried out by the data exporter or an inspection body composed of independent members and in possession of the required professional qualifications bound by a duty of confidentiality, selected by the data exporter, where applicable, in agreement with the supervisory authority;

- (g) to make available to the data subject upon request a copy of the Clauses, or any existing contract for subprocessing, unless the Clauses or contract contain commercial information, in which case it may remove such commercial information, with the exception of Appendix 2 which shall be replaced by a summary description of the security measures in those cases where the data subject is unable to obtain a copy from the data exporter;
- (h) that, in the event of subprocessing, it has previously informed the data exporter and obtained its prior written consent;
- (i) that the processing services by the subprocessor will be carried out in accordance with Clause 11;
- (j) to send promptly a copy of any subprocessor agreement it concludes under the Clauses to the data exporter.

Clause 6

Liability

1. The parties agree that any data subject, who has suffered damage as a result of any breach of the obligations referred to in Clause 3 or in Clause 11 by any party or subprocessor is entitled to receive compensation from the data exporter for the damage suffered.
2. If a data subject is not able to bring a claim for compensation in accordance with paragraph 1 against the data exporter, arising out of a breach by the data importer or his subprocessor of any of their obligations referred to in Clause 3 or in Clause 11, because the data exporter has factually disappeared or ceased to exist in law or has become insolvent, the data importer agrees that the data subject may issue a claim against the data importer as if it were the data exporter, unless any successor entity has assumed the entire legal obligations of the data exporter by contract or by operation of law, in which case the data subject can enforce its rights against such entity.

The data importer may not rely on a breach by a subprocessor of its obligations in order to avoid its own liabilities.
3. If a data subject is not able to bring a claim against the data exporter or the data importer referred to in paragraphs 1 and 2, arising out of a breach by the subprocessor of any of their obligations referred to in Clause 3 or in Clause 11 because both the data exporter and the data importer have factually disappeared or ceased to exist in law or have become insolvent, the subprocessor agrees that the data subject may issue a claim against the data subprocessor with regard to its own processing operations under the Clauses as if it were the data exporter or the data importer, unless any successor entity has assumed the entire legal obligations of the data exporter or data importer by contract or by operation of law, in which case the data subject can enforce its rights against such entity. The liability of the subprocessor shall be limited to its own processing operations under the Clauses.

Clause 7

Mediation and jurisdiction

1. The data importer agrees that if the data subject invokes against it third-party beneficiary rights and/or claims compensation for damages under the Clauses, the data importer will accept the decision of the data subject:
 - (a) to refer the dispute to mediation, by an independent person or, where applicable, by the supervisory authority;
 - (b) to refer the dispute to the courts in the Member State in which the data exporter is established.
2. The parties agree that the choice made by the data subject will not prejudice its substantive or procedural rights to seek remedies in accordance with other provisions of national or international law.

Clause 8

Cooperation with supervisory authorities

1. The data exporter agrees to deposit a copy of this contract with the supervisory authority if it so requests or if such deposit is required under the applicable data protection law.
2. The parties agree that the supervisory authority has the right to conduct an audit of the data importer, and of any subprocessor, which has the same scope and is subject to the same conditions as would apply to an audit of the data exporter under the applicable data protection law.
3. The data importer shall promptly inform the data exporter about the existence of legislation applicable to it or any subprocessor preventing the conduct of an audit of the data importer, or any subprocessor, pursuant to paragraph 2. In such a case the data exporter shall be entitled to take the measures foreseen in Clause 5 (b).

Clause 9

Governing Law

The Clauses shall be governed by the law of the Member State in which the data exporter is established.

Clause 10
Variation of the contract

The parties undertake not to vary or modify the Clauses. This does not preclude the parties from adding clauses on business related issues where required as long as they do not contradict the Clause.

Clause 11
Subprocessing

1. The data importer shall not subcontract any of its processing operations performed on behalf of the data exporter under the Clauses without the prior written consent of the data exporter. Where the data importer subcontracts its obligations under the Clauses, with the consent of the data exporter, it shall do so only by way of a written agreement with the subprocessor which imposes the same obligations on the subprocessor as are imposed on the data importer under the Clauses. Where the subprocessor fails to fulfil its data protection obligations under such written agreement the data importer shall remain fully liable to the data exporter for the performance of the subprocessor's obligations under such agreement. The prior written contract between the data importer and the subprocessor shall also provide for a third-party beneficiary clause as laid down in Clause 3 for cases where the data subject is not able to bring the claim for compensation referred to in paragraph 1 of Clause 6 against the data exporter or the data importer because they have factually disappeared or have ceased to exist in law or have become insolvent and no successor entity has assumed the entire legal obligations of the data exporter or data importer by contract or by operation of law. Such third-party liability of the subprocessor shall be limited to its own processing operations under the Clauses.
2. The provisions relating to data protection aspects for subprocessing of the contract referred to in paragraph 1 shall be governed by the law of the Member State in which the data exporter is established.
3. The data exporter shall keep a list of subprocessing agreements concluded under the Clauses and notified by the data importer pursuant to Clause 5(j), which shall be updated at least once a year. The list shall be available to the data exporter's data protection supervisory authority.

Clause 12
Obligation after the termination of personal data processing services

1. The parties agree that on the termination of the provision of data processing services, the data importer and the subprocessor shall, at the choice of the data exporter, return all the personal data transferred and the copies thereof to the data exporter or shall destroy all the personal data and certify to the data exporter that it has done so, unless legislation imposed upon the data importer prevents it from returning or destroying all or part of the personal data transferred. In that case, the data importer warrants that it will guarantee the confidentiality of the personal data transferred and will not actively process the personal data transferred anymore.
2. The data importer and the subprocessor warrant that upon request of the data exporter and/or of the supervisory authority, it will submit its data processing facilities for an audit of the measures referred to in paragraph 1.

On behalf of the data exporter:

Name (written out in full): _____ Position: _____

Address: _____

Other information necessary in order for the contract to be binding (if any): _____

Signature: _____ (stamp of organisation)

On behalf of the data importer:

Name (written out in full): Elisette Weiss Position: District Partnerships & Privacy Operations

Address: 735 Tehama Street, San Francisco, CA 94103

Other information necessary in order for the contract to be binding (if any): _____

Signature:  (stamp of organisation)

APPENDIX 1 TO THE STANDARD CONTRACTUAL CLAUSES

This Appendix forms part of the Clauses and must be completed and signed by the parties

The Member States may complete or specify, according to their national procedures, any additional necessary information to be contained in this Appendix.

Data exporter

The data exporter is (please specify briefly your activities relevant to the transfer):

Data Exporter is the legal entity specified in Section 3.1 of Schedule 1 of the DPA.

Data importer

The data importer is (please specify briefly activities relevant to the transfer):

ClassDojo, Inc. is a provider of education technology and a school communication platform that helps bring teachers, school leaders, families, and students together, which processes personal data upon the instruction of the data exporter in accordance with the terms of the Agreement.

Data subjects

The personal data transferred concern the following categories of data subjects (please specify):

Data exporter may submit Personal Data to the SCC Services (or ClassDojo may collect and Process on behalf of the Data exporter), the extent of which is determined and controlled by the data exporter in its sole discretion, and which may include, but is not limited to Personal Data relating to the following categories of data subjects:

- Employees, agents, advisors, freelancers of data exporter (who are natural persons)
- Data exporter's Users authorized by data exporter to use the Services (who are natural persons)

Categories of data

The personal data transferred concern the following categories of data (please specify):

Data exporter may submit Personal Data to the SCC Services (or ClassDojo may collect and Process on behalf of the Data exporter), the extent of which is determined and controlled by the data exporter in its sole discretion, and which may include, but is not limited to the following categories of Personal Data:

- Please see the Schedule of Data attached to the Agreement

Special categories of data (if appropriate)

The personal data transferred concern the following special categories of data (please specify):

Data exporter shall not submit special categories of data to the SCC Services.

Processing operations

The personal data transferred will be subject to the following basic processing activities (please specify):

The objective of Processing of Personal Data by data importer is the performance of the SCC Services pursuant to the Agreement.

DATA EXPORTER

Name: _____

Authorised Signature _____

DATA IMPORTER

Name: Elisette Weiss on behalf of ClassDojo, Inc.

Authorised Signature 

APPENDIX 2 TO THE STANDARD CONTRACTUAL CLAUSES

This Appendix forms part of the Clauses and must be completed and signed by the parties

Description of the technical and organisational security measures implemented by the data importer in accordance with Clauses 4(d) and 5(c) (or document/legislation attached):

Data importer will maintain administrative, physical, and technical safeguards for protection of the security, confidentiality and integrity of Personal Data uploaded to the SCC Services, as described in the Security and Privacy Documentation, and accessible via [http:// https://www.classdojo.com/security/](http://https://www.classdojo.com/security/) or otherwise made reasonably available by data importer. Data Importer will not materially decrease the overall security of the SCC Services during a subscription term.

DATA EXPORTER

Name: _____

Authorised Signature: _____

DATA IMPORTER

Name: Elisette Weiss, on behalf of ClassDojo, Inc.

Authorised Signature: 

APPENDIX 3 TO THE STANDARD CONTRACTUAL CLAUSES

ClassDojo is a school communication platform that helps bring teachers, school leaders, families, and students together.

ClassDojo provides the following options through its platform:

- Communication tools to help teachers, students, and parents connect with each other
- A way for teachers to give feedback and assignments to students, and other classroom management tools
- A way for teachers to share photos, videos, files, and more from the classroom for parents and students to see
- Student portfolios, where students can share their work with teachers and parents can upload content
- Activities and other content that teachers or parents can share with students
- A way for school leaders to see how connected their school community is, and also to communicate with parents

More information on how the Service operates is located at www.classdojo.com.

The Service shall not include any Outside School Accounts. Students and parent users may have personal or non-school accounts (i.e., for use of ClassDojo at home not related to school) in addition to school accounts (“Outside School Account(s)”). An Outside School Account of a student may also be linked to their student account. Student Data (as defined in the Student DPA) shall not include information a student or parent provides to ClassDojo through such Outside School Accounts independent of the student’s or parent’s engagement with the Services at the direction of the school or controller.